

Anil Kumar v. State of U.P.

Allahabad High Court · Division Bench · 14 May 2015 · Writ-C No. 27626 of 2015 · Writ-C No. 27626 of 2015 · **Writ disposed; bill-correction application to be treated under cl. 6.5 and decided in three weeks.**

HEADNOTE

On a writ seeking correction of an electricity bill, the Allahabad High Court disposed of the petition by directing the consumer to apply to the Executive Engineer. Any such application is to be treated as filed under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, decided within three weeks, and an appropriate corrected bill issued. The Court did not examine the bill on merits.

FACTUAL SUMMARY

Anil Kumar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh seeking correction of his electricity bill. The order does not record the nature of the alleged error, the amount in dispute, or any prior representation to the distribution licensee. On the material placed on record, the Division Bench treated the grievance as one for administrative bill correction by the Executive Engineer rather than a dispute to be decided on the writ side.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-application-to-executive-engineer

HOLDING

A writ seeking correction of an electricity bill is disposed of by directing the petitioner to make an appropriate application before the Executive Engineer; such application shall be treated as filed under paragraph 6.5 of the Electricity Supply Code, 2005, decided within three weeks, and an appropriate corrected bill issued. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

On a writ seeking correction of an electricity bill, the Allahabad High Court disposed of the petition by directing the consumer to apply to the Executive Engineer. Any such application is to be treated as filed under paragraph 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE ELECTRICITY BILL

Writ disposed by relegating the petitioner to cl. 6.5 without examining the bill on merits. ¶ 1